

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition.

Ruling

1. The Petition is **granted**.
2. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on September 10, 2025 and the Amended Proposed Order to Deposit Funds into a Blocked Account lodged on June 26, 2026.
3. The Court orders Petitioner Jason Binsol to secure the Bank's signature on **Form MC-356** (*Receipt and Acknowledgment of Order for the Deposit of Money into a Blocked Account*). Counsel or Petitioner must file this signed receipt back with the court within thirty (30) days to prove the money is safely deposited for Minor.
4. No appearance is required at the hearing on August 19, 2026.

19. 9:00 AM CASE NUMBER: N25-2261
CASE NAME: MIA ANDREWS VS. VISTA DEL MAR II HOMEOWNERS ASSOCIATION
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: VISTA DEL MAR II HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Summary

Respondent Vista Del Mar II Homeowners Association filed a Motion for Judgment on the Pleadings ("Motion") on March 4, 2026. It is unopposed. The Court **grants** this Motion and will execute the proposed order lodged on March 4, 2026. No appearance is required at the hearing on August 12, 2026.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
QUASH DEPOSITION OF TARA MULLINS AND FOR PROTECTIVE ORDER
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 20, 21 and 22. Before the Court are three motions scheduled for hearing:

1. Defendant John Muir Health's Motion for Judgment Based Upon Deemed Admissions
2. Plaintiff Dianna Jiminian's Motion for relief From Deemed Admissions

3. Defendant John Muir Health's Motion to Quash and Protective Order re Deposition of Tara Mullins

The Court first addresses the Motion for Judgment and the Motion for Relief.

Background

This action arises from claims asserted by Plaintiff Dianne Jiminian ("Plaintiff") against Defendant John Muir Health ("Defendant" or "JMH"), alleging injuries sustained in the course of Plaintiff's employment. The central disputed issue concerns whether Plaintiff was a special employee of JMH such that workers' compensation provides the exclusive remedy for her claims. On December 17, 2025, this Court ordered Plaintiff to serve amended responses to Defendant's Requests for Admission, Sets Two and Three, by January 8, 2026, finding Plaintiff's initial responses non-compliant with the Code of Civil Procedure.

Plaintiff failed to serve the amended responses by the January 8, 2026 deadline. Plaintiff's counsel attributes this failure to inadvertence and excusable neglect, explaining that his paralegal, who was responsible for calendaring deadlines, was on leave due to a dire family emergency and working intermittently. Counsel further asserts that he was occupied with pressing trial preparation in other matters, including the Hagos and Hammer cases, during this period.

On January 28, 2026, Defendant sought an order shortening time to advance the hearing on its Motion to Deem Requests for Admissions Admitted. The Court granted the advancement and set the hearing for March 12, 2026. On February 2, 2026, Defendant again sought *ex parte* relief to further advance the hearing. Although notice was provided, Plaintiff's counsel did not appear at either *ex parte* proceeding, stating he was engaged in expert depositions and trial preparation in other matters. On February 3, 2026, the Court granted Defendant's Motion to Deem Admissions Admitted, vacated the March 12, 2026 hearing, and deemed the requested matters admitted.

On February 9, 2026, six days after the Court's order deeming admissions admitted, Plaintiff served amended responses to the Requests for Admission. On February 17, 2026, Plaintiff sought *ex parte* relief from the deemed admissions order. The Court found no emergency warranting *ex parte* relief and directed Plaintiff to proceed by noticed motion and to meet and confer with Defendant. On May 19, 2026, the parties met and conferred, but Defendant declined to stipulate to relief from the deemed admissions or to withdraw its pending motions.

The deemed admissions establish that JMH supervised Plaintiff's work, required adherence to JMH policies and procedures, mandated JMH-specific training, dictated scheduling, controlled the instrumentalities of her nursing duties, paid Plaintiff for her services, and possessed authority to terminate her assignment.

Defendant now moves for judgment based upon these deemed admissions, contending they conclusively establish special employment and workers' compensation exclusivity.

Plaintiff moves for relief from the deemed admissions under Code of Civil Procedure section 2033.300, arguing that her failure to timely respond resulted from her Counsel's excusable neglect, that she has served substantially compliant responses, and that the Court improperly granted the motion to deem admissions admitted on an *ex parte* basis without affording her an opportunity to be

heard.

ANALYSIS

1. Standard Governing Deemed Admissions and Relief Therefrom

Pursuant to Code of Civil Procedure section 2033.410(a), any matter admitted in response to a request for admission is conclusively established against the party making the admission. As the California Supreme Court held in *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979, responses to requests for admission constitute binding judicial admissions that remove the admitted issue from controversy and relieve the opposing party of the burden of proof. A party may not introduce evidence contradicting its own admissions (*St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 774).

Relief from deemed admissions is governed by Code of Civil Procedure section 2033.300, which permits withdrawal or amendment only upon a showing that the admission resulted from "mistake, inadvertence, or excusable neglect," and that no substantial prejudice to the requesting party will result. However, the trial court's discretion is not unlimited. As the Court of Appeal recognized in *New Albertson's, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1420-1421, discretion must be exercised in conformity with the spirit of the law; any doubts must be resolved in favor of the party seeking relief only where the neglect is truly excusable and withdrawal would not substantially prejudice the opposing party.

2. Plaintiff Failed to Establish Excusable Neglect

Here, Plaintiff's contention that her failure to calendar the January 8, 2026 deadline constitutes excusable neglect is not well-taken. "Neglect is excusable only if a reasonably prudent person in similar circumstances might have made the same error" (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1423). While Plaintiff's Counsel's paralegal's family emergency is unfortunate, an attorney's professional obligations to comply with court orders and meet discovery deadlines cannot be delegated away. The obligation to monitor deadlines and ensure compliance with court orders remains with counsel, regardless of staff absences (*Jerry's Shell v. Equilon Enterprises, LLC* (2005) 134 Cal.App.4th 1058, 1074).

Moreover, "an exceptional workload generally must be accompanied by some factor outside the attorney's control that makes the situation unmanageable" (*Huh* , *supra* , at p. 1424). Plaintiff's counsel's involvement in other litigation, including cases involving the same defense firm, does not constitute such an extraordinary circumstance. The failure to calendar a court-ordered deadline is precisely the type of inexcusable neglect that does **not** warrant relief under section 2033.300.

3. The Court Properly Deemed the Admissions Admitted

Plaintiff's argument that the Court improperly granted the motion to deem admissions admitted on an *ex parte* basis is without merit. This Court possesses broad inherent authority under Code of Civil Procedure section 128(a)(3) and (a)(8) to control its proceedings and provide for their orderly conduct *Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582, 597-598. While *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393 cautions against eliminating the ameliorative function of the statute, it does not deprive trial courts of the authority to manage their calendars and enter appropriate orders.

Furthermore, Plaintiff's counsel had actual notice of Defendant's motion and the potential

consequences of non-compliance. Plaintiff counsel exercised a choice not to appear at the *ex parte* proceedings and failed to serve amended responses until six days after the Court had already deemed the matters admitted. Under these circumstances, the Court's order was proper.

4. The Deemed Admissions Establish Special Employment and Workers' Compensation Exclusivity as a Matter of Law

The deemed admissions conclusively establish that Plaintiff was a special employee of JMH. Under the borrowed-employee doctrine, where a borrowing employer exercises control over the employee's work, equipment, training, and supervision, the employee becomes a special employee, and workers' compensation exclusivity applies (*Caso v. Nimrod Productions, Inc.* (2008) 163 Cal.App.4th 881, 887). The admissions establish that JMH supervised Plaintiff's work, required adherence to JMH policies, mandated JMH training, controlled scheduling and instrumentalities, paid Plaintiff, and possessed termination authority, precisely the control factors that establish special employment.

Because the deemed admissions conclusively establish that Plaintiff's exclusive remedy lies in workers' compensation, no triable issue of fact remains. Pursuant to Code of Civil Procedure section 598 and this Court's inherent authority under section 128, the bifurcated Phase I trial is unnecessary. "The law neither does nor requires idle acts" (Civ. Code, § 3532), and conducting a trial on facts conclusively established through binding admissions would serve no legitimate purpose (*Burr v. Board of Supervisors of Sacramento County* (1892) 96 Cal. 210).

5. Prejudice to Defendant

Granting relief from the deemed admissions would substantially prejudice Defendant. Defendant has relied upon the conclusive effect of the admissions in preparing its defense and in moving for judgment. Permitting withdrawal would resurrect issues that have been conclusively resolved and would require Defendant to litigate facts that Plaintiff has admitted. This is precisely the prejudice that section 2033.300 requires courts to consider.

The Court having considered Defendant John Muir Health's Motion for Judgment Based on Deemed Admissions and Plaintiff Dianne Jiminian's Motion for Relief from Deemed Admissions, together with all supporting and opposing papers, and good cause appearing therefor, finds good cause to grant Defendant's Motion and to Deny Plaintiff's Motion.

Ruling

IT IS THEREFORE ORDERED that:

1. Defendant John Muir Health's Motion for Judgment Based on Deemed Admissions is **granted**. Judgment is hereby entered in favor of Defendant John Muir Health. The trial setting conference calendared for September 21, 2026 is **vacated**.
2. Plaintiff Dianne Jiminian's Motion for Relief from Deemed Admissions is **denied**.
3. This action is hereby dismissed in its entirety with prejudice as to Defendant John Muir Health.
4. Defendant John Muir Health shall recover its costs from Plaintiff Dianne Jiminian pursuant to Code of Civil Procedure section 1032.
5. Based on the foregoing, the Motion to Quash deposition of Tara Mullins is **moot**.
6. Defendant is ordered to prepare and e-file a proposed order conforming to this ruling,

attaching a copy of this ruling, no later than five (5) days from the date of this hearing.

21. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
JUDGMENT BASED ON DEEMED ADMISSIONS
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

See Line 20.

22. 9:01 AM CASE NUMBER: C22-01951
CASE NAME: DIANNA JIMINIAN VS. JOHN MUIR HEALTH
MOTION FOR RELIEF OF ADMISSIONS
FILED BY: JIMINIAN, DIANNA

TENTATIVE RULING:

See Line 20.